

STATE OF NEW YORK

2300--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 16, 2025

Introduced by M. of A. GALLAGHER -- read once and referred to the Committee on Alcoholism and Drug Abuse -- recommitted to the Committee on Alcoholism and Drug Abuse in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to creating a substance use disorder treatment bill of rights

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Subdivision (c) of section 22.03 of the mental hygiene law, as added by chapter 558 of the laws of 1999, is amended and a new subdivision (d) is added to read as follows:

(c) The director of every ~~[chemical dependence]~~ substance use disorder program, service, or treatment facility shall post copies of ~~[a notice]~~ the substance use disorder treatment bill of rights in a form and manner to be determined by the commissioner, at places throughout the facility or program where such ~~[notice]~~ bill of rights shall be conspicuous and visible to all patients~~[, stating]~~. The substance use disorder treatment bill of rights shall include, but need not be limited to, the following:

1. ~~[a general statement of the rights of patients under the various admission or retention provisions of this article; and~~

~~2. the right of the patient to communicate with the director, the board of visitors, if any, and the commissioner]~~ Every patient has the right to participate in developing an individualized plan of treatment and to request a review of the patient's treatment plan by another clinician;

2. Every patient has the right to receive an explanation of services in accordance with the patient's treatment plan;

3. Every patient shall have the right to be fully informed of the patient's proposed treatment, including possible adverse effects;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

LBD00903-04-6

1 4. Every patient has the right to object to or terminate treatment
2 unless otherwise directed pursuant to court order, and cannot be coerced
3 into treatment;

4 5. Every patient has the right to privacy in treatment and in caring
5 for personal needs, to have confidentiality in the treatment of personal
6 and medical records, and to have security in storing possessions;

7 6. Every patient has the right to have access to the patient's treat-
8 ment records;

9 7. Every patient and provider shall treat each other in a mutually
10 courteous and fair way that is appropriate to the patient's individual
11 needs;

12 8. Every patient shall be treated in a manner that is free from abuse,
13 discrimination, mistreatment, and exploitation;

14 9. Every patient's civil and religious liberties, including the right
15 to independent personal decisions and knowledge of available choices,
16 shall not be infringed and facility or program staff shall encourage and
17 assist in the fullest exercise of these rights; and

18 10. Every patient shall be free to report grievances regarding
19 services or staff to a supervisor, director, the board of visitors, or
20 the commissioner.

21 (d) Every substance use disorder program, service, or facility shall
22 give a copy of the substance use disorder treatment bill of rights to
23 each patient at or prior to the time of admission, or to the appointed
24 representative at the time of appointment and to each member of the
25 staff at the program, service, or facility.

26 § 2. This act shall take effect on the one hundred eightieth day after
27 it shall have become a law. Effective immediately, the addition, amend-
28 ment and/or repeal of any rule or regulation necessary for the implemen-
29 tation of this act on its effective date are authorized to be made and
30 completed on or before such effective date.